

ANNEXATION REPORT

Braden Homesites Annexation Summation

CASE NUMBER(s): UDC-15-00814

SUBDIVISION CODE: BRDN

PREPARED BY: Seth Lloyd

PUBLIC HEARING: February 8, 2016

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Petition Signed by at least 51% of property owners, who own at least 51% of land to be annexed
- Annexation Map 151013
- Soils Report (deferred to time of development)
- Signed clearance from the Board of Public Utilities

RECOMMENDATION: Staff recommends approval of the annexation application for Braden Homesites, with the following conditions:

- 1) Please include that portion of Gysel Place adjacent to the project in the annexation boundary.
- 2) Rename the title block on the annexation map to "Braden Homesites", neither a preliminary map or recorded map for "Braden Homesites, 2nd Filing" exists.
- 3) City Ground Datum coordinates need to be provided for the two corners of one boundary course (including the SW corner of this proposed annexation).
- 4) In NOTE 3 a found 1/2" IP was disturbed and replaced. Define which monument was replaced.

ANNEATION REPORT & STAFF REPORT

Braden Homesites

Annexation

CASE NUMBER(s): UDC-15-00814
PREPARED BY: Seth Lloyd
PUBLIC HEARING: February 8, 2016

SUBDIVISION CODE: BRDN

OWNER: SFRE, LLC.
Jerry Ciz
PO Box 1677
Cheyenne, WY 82003

(307) 631-1359

AGENT: Steil Surveying Services
Casey Palma
1102 W 19th Street
Cheyenne, WY 82001

(307) 634-7273

PROJECT: Braden Homesites Annexation

WORK DESCRIPTIONS: An annexation application for Braden Homesites, Laramie County, Wyoming (located at the northeast corner of the intersection of Gysel Place and Dell Range Boulevard).

LOCATION:

1. Legal Description: Block 1, Braden Homesites, and adjacent 16' Alley, Cheyenne, Wyoming
2. Location: The northeast corner of the intersection of Gysel Place and Dell Range Boulevard
3. Address: 5412 and 5416 Dell Range Boulevard

SIZE: 43,770 square feet

CURRENT ZONING: AR Agricultural Residential
PROPOSED ZONING: MUB Mixed-Use Business Emphasis
EXISTING LAND USE: Two Single-Family Homes and vacant
PROPOSED LAND USE: Multi-family

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Rural Residential	County AR	County
South	Residential	MR-2	City
East	Rural Residential	County AR	County
West	Rural Residential	County AR	County

EXECUTIVE SUMMARY:

This annexation application is for about one acre (43,770 square feet) of land northeast of the intersection of Dell Range Boulevard and Gysel Place. This application was submitted along with a zone change application. The land to be annexed will need to be given a City zone. The zone change application proposes changing the County AR Agricultural Residential zone to MUB Mixed-Use Business Emphasis.

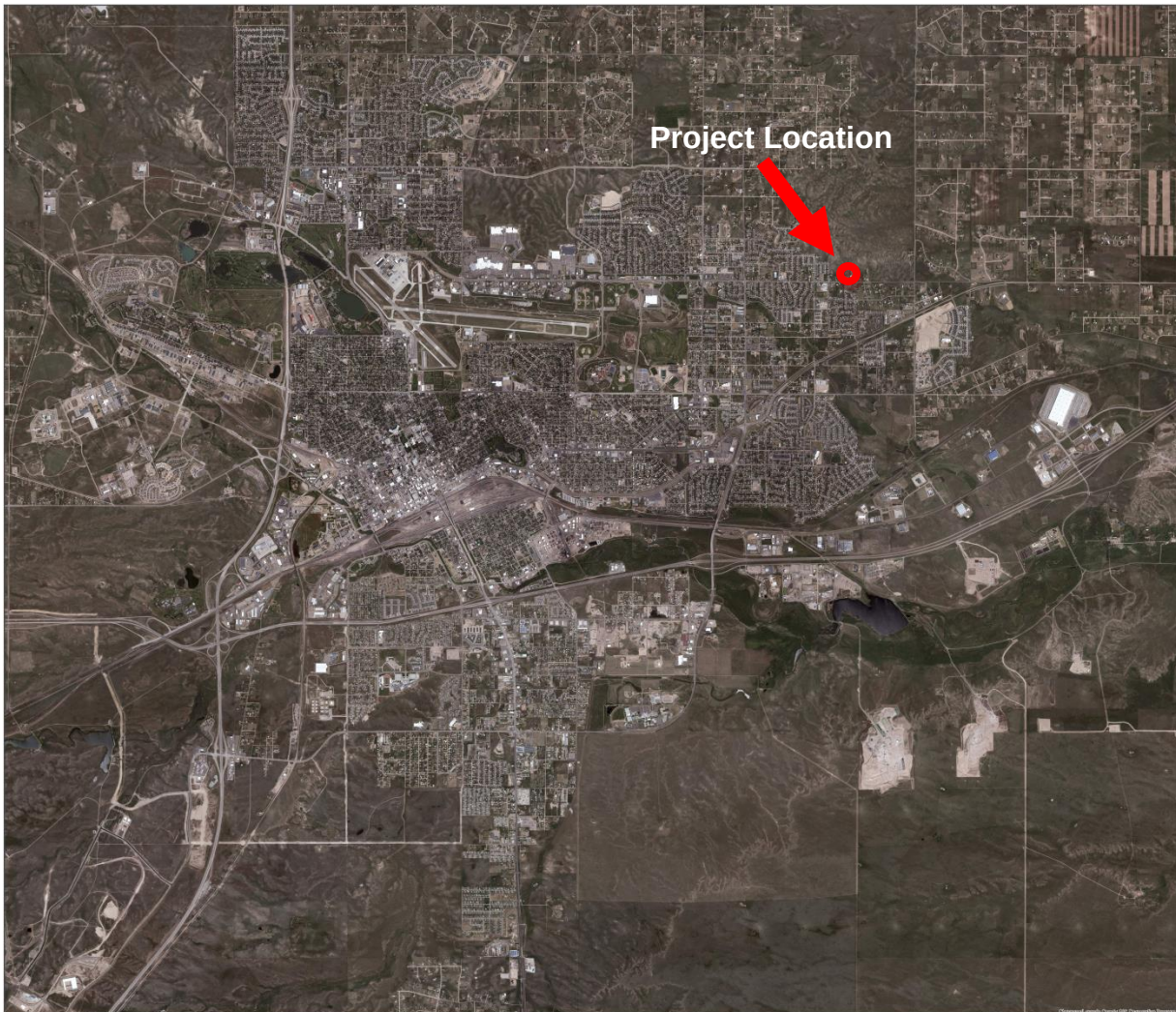
PlanCheyenne is supportive of annexing this land into the City. This land is located within the Urban Service Boundary and is designated in the future land use plan as Urban Residential. Residential zoning is recommended for Urban Residential designated areas by PlanCheyenne.

City services will provide environmental quality benefits to both the current residents and future residents. As with any expansion there will be an impact on service provision within the City. However, as this is a small expansion adjacent to current City Services, the impact on City services will be minor.

With this annexation and subsequent development, it is expected that the area will be developed according to standards of the Unified Development Code (UDC). It is also expected that all utilities will be stubbed to the edges of the project to allow future development on neighboring properties to occur. Undeveloped land to the north and east is anticipated to develop as Urban Residential and Urban Transitional Residential by PlanCheyenne.

Due to meeting the review criteria found in Wyoming Statute 15-1-402, staff recommends approval of this annexation, with conditions.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located at the northeast corner of Dell Range Boulevard and Gysel Place.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of Braden Homesites from the intersection of Dell Range and Gysel, facing east
Source: Development Office



Photograph #2 – Image of Braden Homesites from the intersection of Gysel and the 16' alley on the north side of Braden Homesites, facing south
Source: Development Office

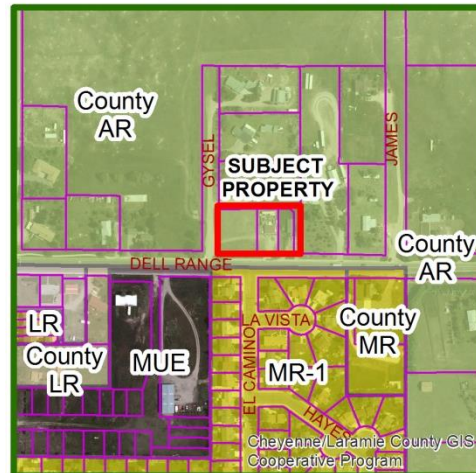
PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne.

PlanCheyenne calls for development within the Urban Service Boundary, which this plat is. On the future land use map found in PlanCheyenne, the subject area has been designated as Urban Residential. The land to the north and east is designated Urban Residential and Urban Transitional Residential. The Urban Residential land use designation is for a broad variety of housing types and densities. Urban Residential also contemplates complimentary uses being integrated within the neighborhoods to serve the community. Urban Residential type development is best served by being inside the City limits with access to City services. PlanCheyenne recommends residential zones for Urban Residential areas.

Braden Homesites is near proposed recreation facilities in PlanCheyenne. These recreation features will serve this neighborhood once they are constructed.

Zone Districts



Map #3 – Zone Districts

Source: Cheyenne/Laramie County GIS Cooperative Program

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

The annexation of this property will increase the health, safety, and welfare of the residents of the development once it is built. By being in City limits, the residential will receive access to City Fire and Police services. The residents will also be connected to City Water and Sanitary Sewer instead of having wells and septic systems.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

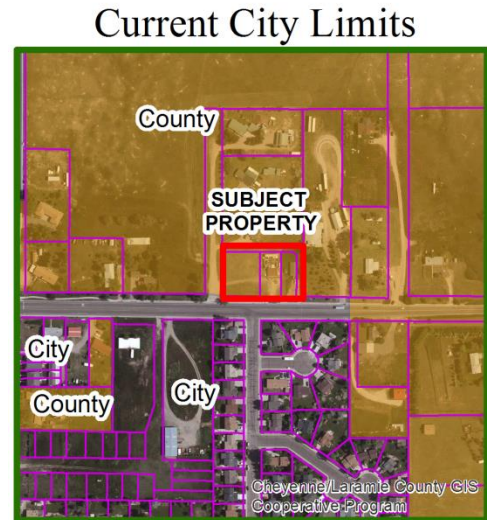
This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the south and the location along a major arterial makes the parcel a natural geographic part of the City. The residents will likely work in the Cheyenne area and will be a part of the social and economic fabric that is Cheyenne.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be available to this location. As with any expansion at the edge of the City the expansion will require the expansion of City services.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The parcels proposed for annexation is about 31% contiguous, all along the southern edge of the parcels.



Map #4 – Current City Boundaries
Source: Cheyenne/Laramie County GIS Cooperative Program

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

Utility franchises are in place to serve the parcels.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was made to the required agencies on January 8, 2016.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$48,000.00. Estimated costs include the extension of the sewer main and connection of existing structures to the sewer. Additional on- and off-site improvements may be required with subsequent development actions.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services will be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Development will require extension of water and sewer services, which are available to the subject property.

- (iv) Fees for water, sewer, and sanitation services are a variable amount for residential units, based upon volume and meter size. For the annexed single-family residential lots, total annual fees, including water, sewer and sanitation services, are **estimated** at \$1,200.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Reviewing Agencies w/ Comments:

- Board of Public Utilities (Linda Gunter)
 - o **(FYI)** There is water and sewer available to serve this development off Dell Range Blvd. The developer will be required to construct a looped water main system to serve this development. Owner/Developer is responsible for verifying the available sewer capacity of the existing sewer system in the area to serve this project.
 - o **(FYI)** The property Owner/Developer shall be required to extend the water and sanitary sewer utilities from their current location to the farthest point (or points) of the property being developed. These utility extensions shall be to a point (or points) that are logical for projected future connections to future development projects, as determined by the BOPU and the property owner/developer. The Board of Public Utilities prefers all water and sewer main extensions to remain in the City's right of way when all possible.
- City Surveyor (Jack Studley)
 - o **(FYI)** 1. Boundary data and legal descriptions appear in order.
 - o **(CONDITION FOR APPROVAL)** 2. City Ground Datum coordinates need to be provided for the two corners of one boundary course (including the SW corner of this proposed annexation).
 - o **(CONDITION FOR APPROVAL)** 3. In NOTE 3 a found 1/2" IP was disturbed and replaced. Which monument was that?
- County Assessor
 - o **(CONDITION FOR APPROVAL)** The title block on the annexation map notes 'Braden Homesites, 2nd Filing'. Neither a preliminary map nor recorded map for such was found.
 - o **(FYI)** We are currently assessing Jerry Ciz and Cory W. Kasten for Lots 1 and 2, Block 1, Braden Homesites. SFRE LLC is being assessed for Lots 3 and 4, Block 1, Braden Homesites. As of December 28, 2015, a recorded document transferring ownership of Lots 1 and 2 to SFRE, LLC has not been recorded.
 - Note from the Development Department on this comment: All three properties have the same mailing address. Jerry Ciz is the signer for SFRE, LLC. The Kasten property has a comment "C/O SFRE LLC" on the County Assessor's website. The application was deemed, by the City Clerk, to meet the requirement of 51% of the owners owning 51% of the land signing the petition.
- County Public Works (Rob Geringer)
 - o **(CONDITION FOR APPROVAL)** Please include that portion of Gysel Place adjacent to the project in the annexation boundary.
- Development (Seth Lloyd)
 - o **(CONDITION FOR APPROVAL)** The City typically requires annexation proposals to include all public rights of way adjacent to the parcels proposed to be annexed. Please add the entire right of way of Gysel Place between Dell Range and the north side of the 16' alley.
- Engineering (Nathan Beauheim)
 - o **(FYI)** The City Engineer's Office is amenable to postponing submittal of the final soils report until such time as detailed construction plans are submitted for the public infrastructure.

- **(FYI)** City street improvements will be required on Gysel Pl. at time of development in accordance with Section 1.16.040 of City Code.
- Environmental Health Department (Roy Kroeger)
 - **(FYI)** Laramie County Small Wastewater System Regulations
201 Area Facility Management Plans: This property already has both public water and public sewer to it. The property cannot be issued small wastewater system permits without exception from both the City of Cheyenne and Laramie County.
- Fire Department (Jim Schamerhorn)
 - **(FYI)** New structures on the annexed lots are required to meet the minimum, fire hydrant placement pursuant to the 2012 Edition of the International Fire Code - Section 507.5 Fire hydrant systems. Fire hydrant systems shall comply with Sections 507.5.1 through 507.5.6. 507.5.1 Where required.
 - **(FYI)** Where a portion of the facility or building hereafter constructed or moved into or within the jurisdiction is more than 400 feet (122 m) from a hydrant on a fire apparatus access road, as measured by an approved route around the exterior of the facility or building, on-site fire hydrants and mains shall be provided where required by the fire code official.
- Metro Planning Office (Nancy Olson)
 - **(FYI)** FYI: at site plan stage; individual access to the 4 homesites will not be allowed from Dell Range which is classified as an arterial.

Reviewing Agencies w/o Comments:

- Cheyenne Light, Fuel & Power (Robert Mestas)
- City Engineer (John Hall)
- Development Department (Brandon Cammarata)
- Development Department (Susana Montana)
- Engineering Development – GIS/Tech (Gary Stogsdill)
- Engineering Department – General (David Cole)
- Parks and Recreation Department (Teresa Moore)
- Police Department (Brian Kozak)
- Metro Planning Office (Sreyoshi Chakraborty)

Reviewing Agencies not Responding:

- CenturyLink (Bob Bates)
- Charter (Bryan VanKirk)
- City Attorney (Daniel White)
- Land Records Technician (Harry Osbourn)
- County Attorney (Mark Voss)
- County Clerk (Debbye Lathrop)
- County Fire District #2 (Jason Caughey)
- High West Energy (Lloyd Sisson)
- Laramie County Conservation District (Jim Cochran)
- Laramie County Engineer (Scott Larson)
- Laramie County Planning & Development (Nancy Trimble)
- Laramie County Sheriff (Danny Glick)
- Public Works (Vick Nemecek)
- Urban Planning (Logan Graves)

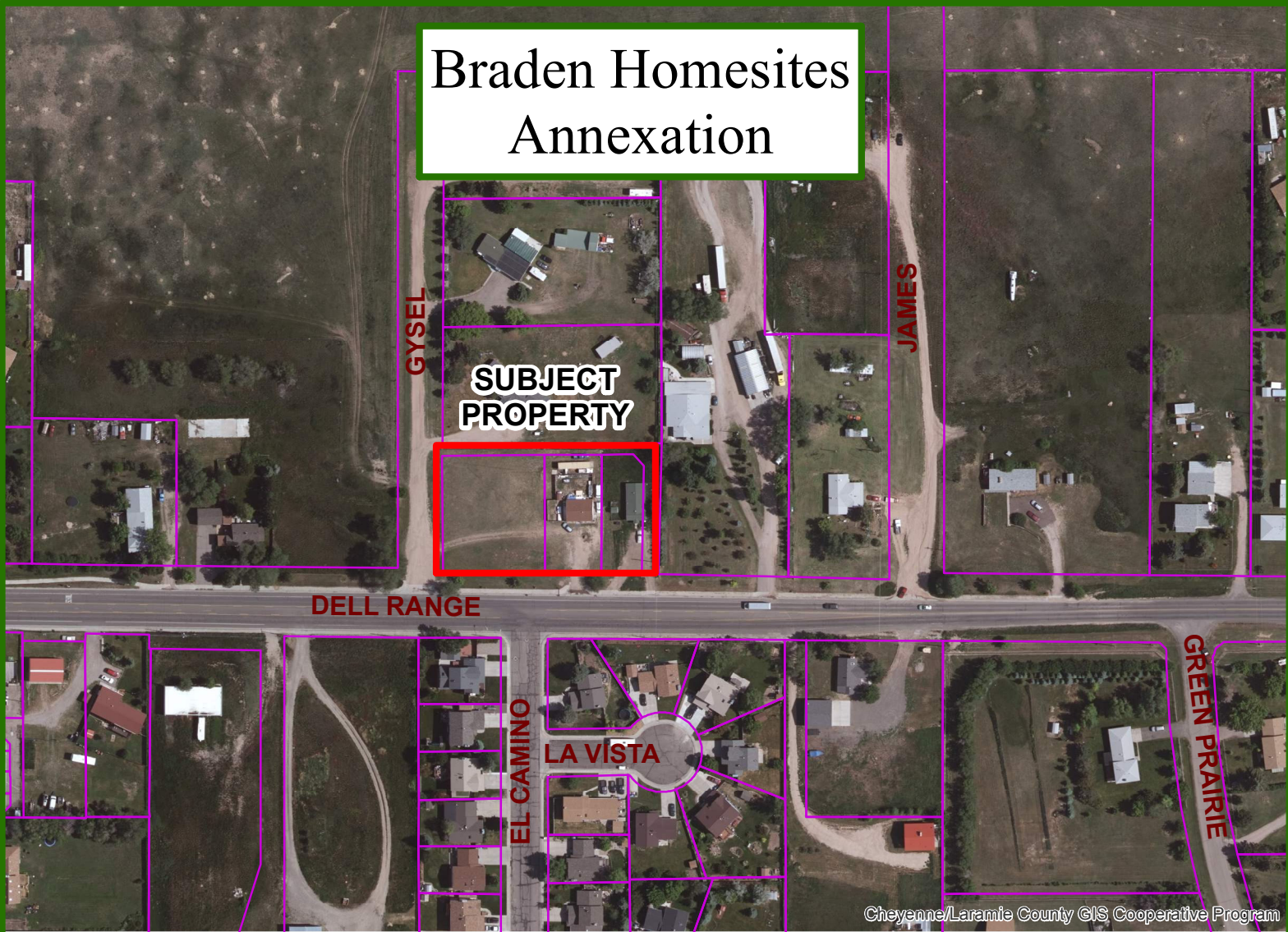
Other Comments Received:

- None

Encl: Annexation Map

Cc: Agent, Owner, File

Braden Homesites Annexation

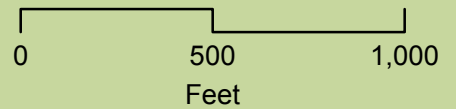


Cheyenne/Laramie County GIS Cooperative Program

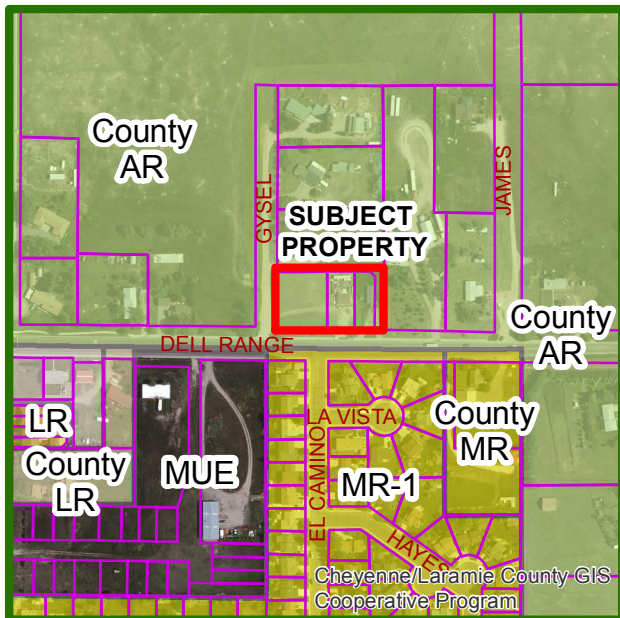
Application Number
Annexation
UDC-15-00814

Applicant: Jerry Ciz
SFRE, LLC
Agent: Casey Palma
Steil Surveying Services

Scale applies to
above map only



Zone Districts

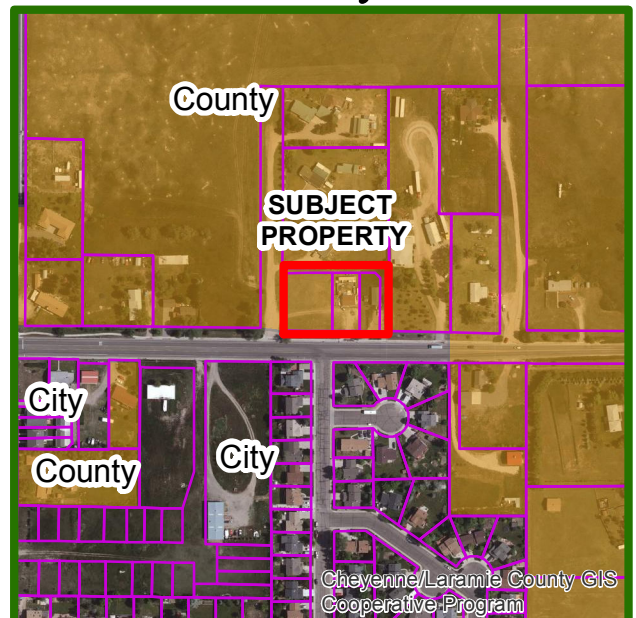


Cheyenne/Laramie County GIS
Cooperative Program



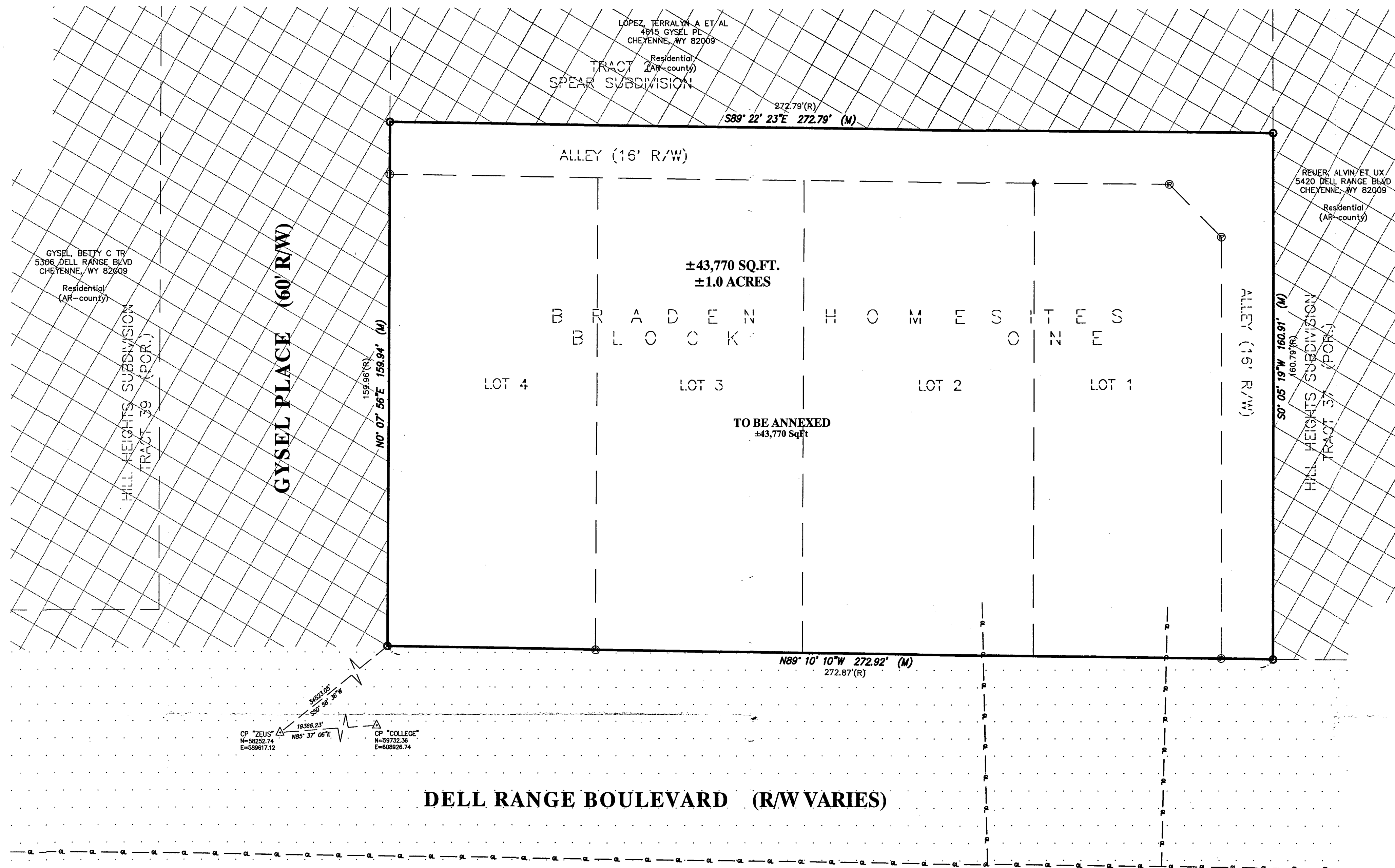
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Current City Limits



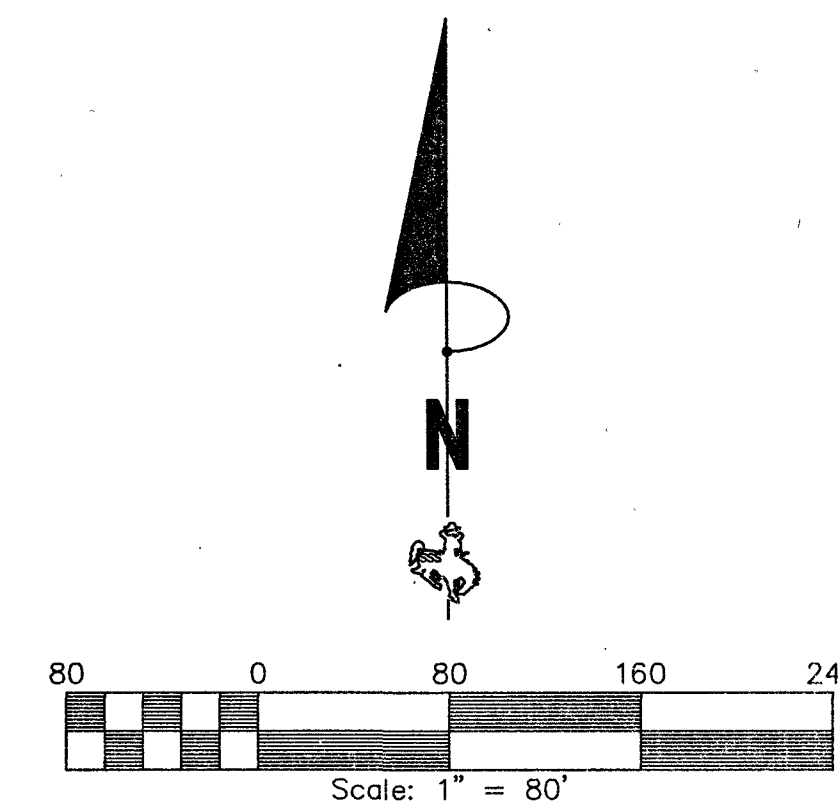
Cheyenne/Laramie County GIS
Cooperative Program

NO PROPOSED CENTRAL WATER SUPPLY SYSTEM - NO PROPOSED CENTRALIZED SEWAGE SYSTEM - FIRE PROTECTION TO BE PROVIDED BY CITY OF CHEYENNE FIRE & RESCUE



LAND DESCRIPTION

All of Lots 1, 2, 3 and 4, and those adjacent portions of 16 foot alley rights-of-way, Block One, Braden Homesites, City of Cheyenne, Laramie County, Wyoming. Containing 43,770 square feet, more or less, and subject to easements, covenants and restrictions of record.



LEGEND

- SET 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" x 24" REBAR
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ⊙ FOUND 3/4" REBAR
- ⊙ FOUND 1/2" IRON PIPE
- (M) DENOTES MEASURED DATA THIS SURVEY
- (R) DENOTES RECORD PLAT DATA

- AREA TO BE ANNEXED
- ▨ OTHER LANDS CURRENTLY OUTSIDE OF THE CITY OF CHEYENNE CORPORATE LIMITS (COUNTY)
- ▨ LANDS CURRENTLY INCORPORATED WITHIN THE CITY OF CHEYENNE CORPORATE LIMITS

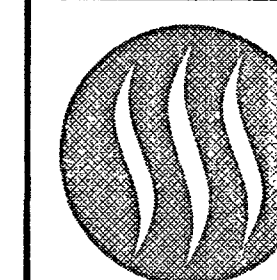
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ANNEXATION MAP FOR BRADEN HOMESITES, 2nd FILING

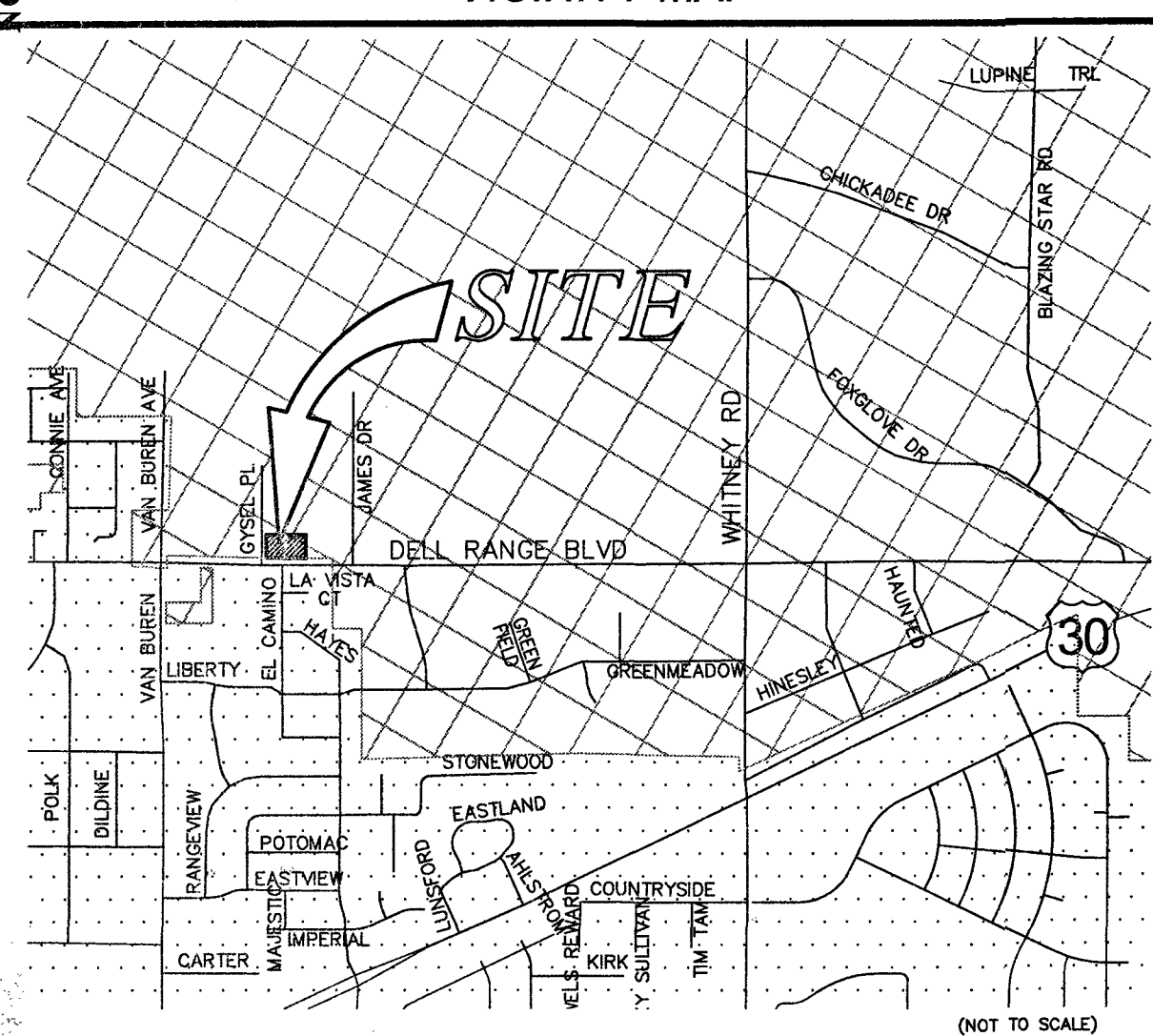
BEING ALL OF LOTS 1 THRU 4 AND THOSE ADJACENT PORTIONS OF 16' ALLEY, BLOCK 1, BRADEN HOMESITES CITY OF CHEYENNE LARAMIE COUNTY, WYOMING

SITUATED IN THE SW 1/4 OF SECTION 23, T.14N., R.66W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING
PREPARED FEBRUARY, 2015



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com

VICINITY MAP



FILING RECORD

NOTES

1. BASIS OF BEARINGS - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "ZEUS" & "COLLEGE".
2. NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN A F.E.M.A. SPECIAL 100-YEAR FLOOD HAZARD AREA AS SHOWN ON F.I.R.M. PANEL No. 56021C1111F DATED JANUARY 17, 2007
3. FOUND 1 1/2" IRON PIPE REPLACED WITH 1 1/2" ALUMINUM CAP STAMPED "SSS PLS 5910" ON 3/4" x 24" REBAR.
4. NEAREST FIRE HYDRANT APPROXIMATELY 200' SOUTH AT THE CORNER OF EL CAMINO DRIVE AND LA VISTA COURT.
5. DOMESTIC WATER AND SANITARY SEWER SERVICES TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU).
6. CURRENT INCORPORATED CITY LANDS ABUT APPROXIMATELY 31% OF THE 866.56' PARCEL PERIMETER. (SEE WS 15-1-402(B)).

APPROVAL

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of ____ 2015.

Mayor _____ ATTEST: City Clerk _____